ANTI-CORRUPTION COMMISSION

COMMISSION MEETING FORM

MEETING NO.	60th Commission Meeting
DATE:	14 December 2021
TIME:	2:00 PM
VENUE:	Third Floor Meeting Room

#	AGENDA	DECISIONS
1.	Update and way forward on the research report on Policy Corruption – RD, DoPE	In keeping with the directives of the Commission on the draft research report on Policy Corruption, the Research Division presented the draft with minor changes to the Commission. To this, the Commission endorsed the draft report with following specific directives: • Change the title of the report to 'Report on Policy Corruption: Concept, Characteristics & Risk' • Specify the agencies responsible to implement the recommended strategies/interventions; • Develop a separate white paper drawing insights from the report on definition of Policy corruption in the local context, its enablers and differences between political and policy corruption.
2.	Draft report on ACA Strengthening Initiative Assessment Report – PPS	Transparency International supported by local partner (Bhutan Interdisciplinary Research & Development) submitted the draft report on ACA Strengthening Initiative Assessment which was carried out from October to December 2021. The assessment was done to gauge progress since the first pilot assessment in 2015. Based on 50 indicators classified under five dimensions, the assessment aims to provide the ACC with up-to-date information regarding its performance and opportunities for improvement, and provide better understanding to the relevant stakeholders about the enabling and disabling factors that affects the ACA's efficacy. The 2021 assessment indicates that the ACC continues to perform very well. 64 percent of the indicators were rated as high, 32 percent were rated as moderate, and 4 percent were rated as low. The overall rating has declined slightly since the first assessment in 2015 (70 percent high, 26 percent moderate and 4 percent low). However, the report also highlighted that the two assessments are not directly comparable as the research framework has undergone some changes. Following were some of comments discussed to be shared with the reviewers: • Revisit the rating of indicator *'Appointment & removal*

		of Commissioners'. To this, share the Rules of Procedure on appointment of Constitutional Post Holders, which outlines clear criteria for nomination, agenda setting, decision making, among others. • Indicate to the consultant that the indicator *'Sufficiency of budget'* being rated high also includes pay and allowances, which is almost 60-70 percent of the allocated budget. While the budget for pay and allowances is not a concern, the budget for programs that are capital intensive needs further attention. When it comes to allocation of budget for different functions, the budgeting is done based on the nature of programs/activities involved. These allocations in turn goes through rigorous consultations and negotiations. • The rating of high on *'Investigation & Prosecution expertise'* to be revisited given that the expertise considered in the assessment is merely on the education qualification of the staff. However, when it comes to assessing the applicability of these backgrounds in furthering anti-corruption mandate, it is questionable. The expertise on financial accounting, cybercrime, digital forensics, policing and intelligence, etc. still remains a huge gap in the wake of rapidly evolving corruption risks. • Clarify that the ACC have designated Information & Media Officer to facilitate cooperation with external stakeholders including the media. Not only that, the ACC have adopted the ACC's Media & Communication Policy and Strategy, which outlines processes and programs to engage the citizens through media and sharing of information. With regard to sharing of other information related to complaints and cases, the ACC has always been responsive towards enquiries. However, given the sensitive nature of the mandate, the importance of ensuring strict confidentiality needs to be emphasized. Further, certain information cannot be shared without following the due process, in particular, the Annual Reports that are shared only after deliberation in the Parliament. • Indicator on *'Restitution & Asset recovery'* to be revisited including the write-up as the restitution task unequivocally lies with the OAG. However, the OAG due to resource constraint, are not able to take the restitution efforts rigorously. In this regard, the ACC has been actively extending all necessary supports to maintain the seized properties including disposal. When it comes to cases prosecuted by the ACC (four until now), all the restitution related to these cases have been completed except for JPLP case which is underway. Further, also clarify that the ACC only prohibits transaction and/or developmental activities

		of those frozen immovable properties and does not restrict it from being used. To this effect, share the copy of documents related to this matter such as letter, Trongsa Court judgment, etc. • Justify the rating of low on '*Accessibility to marginalized group'* by stating that while there is no dedicated program for marginalized groups, infrastructure and systems have been designed in such that all sections of the society are considered. For instance, provision to lodge complaints using the WeChat and WhatsApp has been initiated to reach the unreached section of the society including marginalized youth in rural areas. The ongoing construction office in Phuntsholing also is equipped with facilities to accommodate the needs of the marginalized section of the society. In addition, the Commission decided to invite the external stakeholders to the validation meeting on the report which was scheduled on 21 December 2021 for constructive discussion.

Commissioner **Commissioner** **Chairperson**